

|                |                                                                                                                                                                                                                                                                                              |                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|----------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>COMPANY</b> | <p style="text-align: center;"><b>Sun Surety</b><br/><b>Insurance Company</b></p> <p>21 Main Street, Rapid City, SD 57701<br/>Tel: (605) 348-1000 • e-mail: SSIC@sunsuretybail.com</p> <p><small>*You may deliver any bond release documentation to the Sun Surety Insurance Co.</small></p> | <b>PRODUCER</b> | <p style="text-align: center; font-size: small;">(PREPRINTED OR STAMPED NAME OF THE INSURANCE PRODUCER WHO POSTED THE BOND WITH THE COURT)<br/>(Stamp must include name, address, phone no., e-mail and license no.)</p> <p style="text-align: center;"><b>BAIL BOND RELEASE CENTER</b></p> <p>800 S. Congress Ave, West Palm Beach, FL 33406<br/>Tel: (561) 833-4388<br/>bailbondreleasecenter@gmail.com<br/><b>Carlos Sevilla • FL Bail Agent Lic. #P204302</b></p> |
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## BAIL BOND PREMIUM RECEIPT AND STATEMENT OF CHARGES

**RECEIPT NO.: PR-**

I understand that the premium owing or paid is fully earned upon the defendant's release from custody and the fact that the defendant may have been improperly arrested, re-arrested, the case dismissed, or the bail reduced shall not obligate the return or forgiveness of any portion of any premium except as otherwise provided by applicable law (if any) as stated in the Bail Bond Agreement.

1. Today's Date: \_\_\_\_\_ Date of Defendant's Arrest: \_\_\_\_\_
2. Amount Received: \_\_\_\_\_ Dollars (\$ \_\_\_\_\_)
3. In the form of:    ☐ Cash    ☐ Check    ☐ Money Order    ☐ Credit Card    ☐ Other: \_\_\_\_\_
4. Payer's Full Name: \_\_\_\_\_
5. Payer's Address: \_\_\_\_\_  

(Street address)
(City)
(State)
(Zip)
6. In connection with (a) Bail Bond(s) for Defendant: \_\_\_\_\_  

(Defendant's full name)
7. Bail Bond Amount(s): \_\_\_\_\_ Power No.(s) (if known): \_\_\_\_\_
8. Date of Defendant's Release on Bail: \_\_\_\_\_
9. Court Name and address: \_\_\_\_\_
10. Date & Time of next required Court Appearance: \_\_\_\_\_
11. Charge(s): \_\_\_\_\_
12. Bail bond premium: \_\_\_\_\_ \$
13. Itemized expense #1 description: \_\_\_\_\_ \$  

(if and as permitted by applicable law)
14. Itemized expense #2 description: \_\_\_\_\_ \$  

(if and as permitted by applicable law)
15. Total Charges: (premium plus any itemized expenses shown above) \_\_\_\_\_ \$
16. Amount Paid: \_\_\_\_\_ \$
17. Balance Due: \_\_\_\_\_ \$
18. Was collateral taken?    ☐ Yes    ☐ No    (If "Yes", collateral receipt # \_\_\_\_\_)

All other documents executed by Defendant, Indemnitor(s), me, or other party related to the Bail Bond(s) are incorporated into and made a part hereof by reference.

|                                                                                                                                                                                      |                                                                                                                                                                                                                              |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p>Paid by: _____</p> <p style="text-align: center; font-size: small;">Payor Signature</p><br><p>_____</p> <p style="text-align: center; font-size: small;">Payor Name (printed)</p> | <p>Received by: _____</p> <p style="text-align: center; font-size: small;">Producer/Representative Signature</p><br><p>_____</p> <p style="text-align: center; font-size: small;">Producer/Representative Name (printed)</p> |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                |                                                                                                                                                                                                                                                                                   |                 |                                                                                                                                                                                                                                                                                                                                                                 |
|----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
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|----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

## BAIL BOND APPLICATION - INDEMNITOR

**(THIS FORM IS NOT FOR USE IN COLORADO OR NEW YORK)**

You, the undersigned indemnitor ("Indemnitor" or "you"), hereby represent and warrant that the following declarations made and answers given are true, complete and correct and are made for the purpose of inducing **Sun Surety Insurance Company** ("Surety") to issue, or cause to be issued, a bail bond or undertaking for \_\_\_\_\_ ("Defendant"), using power of attorney number(s) (if known) \_\_\_\_\_, in the total amount of \$ \_\_\_\_\_ in the \_\_\_\_\_ Court of \_\_\_\_\_ ("County").

### 1. INDEMNITOR NAME AND INFORMATION

RELATIONSHIP TO DEFENDANT: \_\_\_\_\_

Name \_\_\_\_\_ Nickname/Alias \_\_\_\_\_  
Indemnitor's full name (First, Middle, Last)

Phone Numbers: Home: \_\_\_\_\_ Work: \_\_\_\_\_ Mobile: \_\_\_\_\_

Email: \_\_\_\_\_

Current Home Address \_\_\_\_\_ How Long? \_\_\_\_\_

☐ Rent ☐ Own Landlord/Mortgage Holder \_\_\_\_\_

Former Home Address \_\_\_\_\_ How Long? \_\_\_\_\_

☐ Rent ☐ Own Landlord/Mortgage Holder \_\_\_\_\_

Do you have any of the following social media accounts?

Facebook: ☐ Yes ☐ No      LinkedIn: ☐ Yes ☐ No      Snapchat: ☐ Yes ☐ No

Instagram: ☐ Yes ☐ No      Twitter: ☐ Yes ☐ No

### 2. PERSONAL DESCRIPTION

Date of Birth \_\_\_\_\_ Where Born \_\_\_\_\_ Sex: ☐ M ☐ F  
(City and State)

Social Security # \_\_\_\_\_ Driver's License # \_\_\_\_\_ Issuing State \_\_\_\_\_

Race \_\_\_\_\_ U.S. Citizen? ☐ Y ☐ N      How Long in U.S.? \_\_\_\_\_

Nationality \_\_\_\_\_ Alien # \_\_\_\_\_

Additional Notes: \_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

### 3. EMPLOYMENT

Occupation \_\_\_\_\_  
Employer \_\_\_\_\_ How Long? \_\_\_\_\_  
Employer Address \_\_\_\_\_  
Supervisor's Name: \_\_\_\_\_ Employer Tel: \_\_\_\_\_  
Union? \_\_\_\_\_ Local # \_\_\_\_\_  
Military Service: Branch \_\_\_\_\_ Active? \_\_\_\_\_ Discharge Date \_\_\_\_\_

### 4. AUTOMOBILE

Year \_\_\_\_\_ Make \_\_\_\_\_ Model \_\_\_\_\_  
Color \_\_\_\_\_ Plate # \_\_\_\_\_ State \_\_\_\_\_  
Where Financed? \_\_\_\_\_ Amount Owed? \$ \_\_\_\_\_

### 5. MARITAL STATUS

☐ Married ☐ Divorced ☐ Separated ☐ Widowed ☐ Single ☐ Cohab

Spouse/girl/boyfriend's Name \_\_\_\_\_  
First Middle Last

How Long Married/Together? \_\_\_\_\_

Address (if different) \_\_\_\_\_

Email \_\_\_\_\_ Social Security # \_\_\_\_\_

Tel.: home \_\_\_\_\_ work \_\_\_\_\_ cell \_\_\_\_\_

Employer \_\_\_\_\_ How Long? \_\_\_\_\_

Occupation \_\_\_\_\_ Employer Tel. \_\_\_\_\_

### 6. REFERENCES

Name \_\_\_\_\_ Relation \_\_\_\_\_

Address \_\_\_\_\_

Employer \_\_\_\_\_

Tel.: home \_\_\_\_\_ work \_\_\_\_\_ cell \_\_\_\_\_

Name \_\_\_\_\_ Relation \_\_\_\_\_

Address \_\_\_\_\_

Employer \_\_\_\_\_

Tel.: home \_\_\_\_\_ work \_\_\_\_\_ cell \_\_\_\_\_

Name \_\_\_\_\_ Relation \_\_\_\_\_

Address \_\_\_\_\_

Employer \_\_\_\_\_

Tel.: home \_\_\_\_\_ work \_\_\_\_\_ cell \_\_\_\_\_

## 7. FINANCIAL STATEMENT/CREDIT INFORMATION

Cash on hand \$ \_\_\_\_\_ Cash in bank \$ \_\_\_\_\_

Real Estate Value \$ \_\_\_\_\_ Real Estate Mortgage \$ \_\_\_\_\_

In whose name is title? \_\_\_\_\_

Monthly salary or wages \$ \_\_\_\_\_

Tel.: home \_\_\_\_\_ work \_\_\_\_\_ cell \_\_\_\_\_

## 8. NOTES

Indemnitor  
Name \_\_\_\_\_

Indemnitor  
Signature \_\_\_\_\_ Date \_\_\_\_\_

## **IMPORTANT FRAUD WARNINGS**

### **ALABAMA RESIDENTS**

Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution fines or confinement in prison, or any combination thereof.

### **ARKANSAS RESIDENTS**

Any person who knowingly presents a false or fraudulent claim for payment for a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

### **FLORIDA RESIDENTS**

Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony of the third degree.

### **LOUISIANA, RHODE ISLAND & WEST VIRGINIA RESIDENTS**

It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or a denial of insurance benefits.

### **MAINE, TENNESSEE, VIRGINIA & WASHINGTON RESIDENTS**

It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or a denial of insurance benefits.

### **MARYLAND RESIDENTS**

Any person who knowingly or willfully presents a false or fraudulent claim for payment of a loss or benefit or who knowingly or willfully presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

### **NEW JERSEY RESIDENTS**

Any person who includes any false or misleading information on an application for an insurance policy is subject to criminal and civil penalties.

### **NEW MEXICO RESIDENTS**

ANY PERSON WHO KNOWINGLY PRESENTS A FALSE OR FRAUDULENT CLAIM FOR PAYMENT OF A LOSS OR BENEFIT OR KNOWINGLY PRESENTS FALSE INFORMATION IN AN APPLICATION FOR INSURANCE IS GUILTY OF A CRIME AND MAY BE SUBJECT TO CIVIL FINES AND CRIMINAL PENALTIES.

### **OHIO RESIDENTS**

Any person who, with intent to defraud or knowingly that he is facilitating a fraud against an insurer, submits an application or files a claim containing a false or deceptive statement is guilty of insurance fraud.

### **OKLAHOMA RESIDENTS**

WARNING: Any person who knowingly, and with intent to injure, defraud or deceive any insurer, makes any claim for the proceeds of an insurance policy containing any false, incomplete or misleading information is guilty of a felony.

### **PENNSYLVANIA RESIDENTS**

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person criminal and civil penalties.

SURETY:

**Sun Surety**

**Insurance Company**

21 Main Street, Rapid City, SD 57701

Tel: (605) 348-1000 • e-mail: SSIC@sunsuretybail.com

\*You may deliver any bond release documentation to the Sun Surety Insurance Co.

(PREPRINTED OR STAMPED NAME OF THE INSURANCE PRODUCER WHO POSTED THE BOND WITH THE COURT)  
(Stamp must include name, address, phone no., e-mail and license no.)

**BAIL BOND RELEASE CENTER**

800 S. Congress Ave, West Palm Beach, FL 33406

Tel: (561) 833-4388

bailbondreleasecenter@gmail.com

Carlos Sevilla • FL Bail Agent Lic. #P204302

**FLORIDA ADDENDUM TO  
BAIL BOND AGREEMENT - INDEMNITOR**

This Florida Addendum ("Addendum") is attached to and forms part of the Bail Bond Agreement signed, sealed and delivered by you as Indemnitor ("Agreement") and is incorporated into the Agreement by this reference. Any capitalized terms used in this Addendum without definition shall have the meanings assigned to these terms by the Agreement.

A. For good and valuable consideration, you agree to indemnify and hold harmless the Surety or its agent for all losses not otherwise prohibited by law or by rules of the Department of Financial Services.

B. You acknowledge receipt of copies of the Terms and Conditions of the Bail Bond Agreement and the Florida Addendum thereto, which include statements as to (1) the restrictions placed on Defendant as a condition of the Bond and (2) the agent's powers relating to the cancellation of the Bond and recommitment of Defendant.

C. The specific fees for which you are required to indemnify Surety and its agent in accordance with the Agreement are as follows:

- (i) Costs necessary to apprehend Defendant in the event Defendant attempts to flee the jurisdiction of the courts;
- (ii) Attorneys' fees and court costs associated with filing of motions;
- (iii) Documented transportation and lodging expenses outside the jurisdiction of the court;
- (iv) Law enforcement costs for housing, re-arrest, transportation and extradition; and
- (v) A maximum fee of \$100 for a surrender allowed by law when there has been no forfeiture of the Bond.

D. Collateral will be returned to the person whose name appears as Depositor on the Collateral Receipt within 21 days after proof of final termination of liability on the Bond has been provided to the Surety.

E. Surety shall be entitled to deduct from collateral held or any return premium all fees, expenses, and charges authorized by applicable law, including Florida Administrative Code 69B-221.105.

F. For any complaints or inquiries, you may contact the Department of Financial Services, Bail Bond Section, 200 E. Gaines Street, Tallahassee, FL 32399-0320, (850) 413-5660.

G. Except as expressly provided in this Addendum, all terms and conditions of the Agreement remain in full force and effect. In the event of a conflict between the terms and conditions of the Agreement and this Addendum, this Addendum shall control.

H. This Addendum shall be attached to every Bail Bond Agreement entered into in the State of Florida.

**Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony of the third degree.**

Signed, sealed and delivered this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_

Signature of Indemnitor \_\_\_\_\_

Printed Name of Indemnitor \_\_\_\_\_



|                |                                                                                                                                                                                                                                                                    |                 |                                                                                                                                                                                                                                                                                                                                                                                                                   |
|----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
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|----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

**BAIL BOND AGREEMENT ("Agreement")**  
**THIS IS A 4-PAGE DOUBLE SIDED DOCUMENT; READ ALL PAGES CAREFULLY.**

In consideration of *Sun Surety Insurance Company*, as applicable, ("Surety"), through that Surety's duly appointed independent bail producer ("Bail Producer") (Surety and Bail Producer are sometimes together referred to as "Surety"), issuing, or causing to be issued, a criminal appearance bail bond described as:

Date \_\_\_\_\_ Defendant \_\_\_\_\_

Indemnitor(s) \_\_\_\_\_

Power Number(s) \_\_\_\_\_

Total Bond Amount \$ \_\_\_\_\_ ("Bond")

**I/we represent and warrant that I/we have read, approve and agree to all of the terms and conditions found on following pages (front and back).**

Signed, sealed and delivered this \_\_\_\_\_ day of \_\_\_\_\_, 20 \_\_\_\_\_.

**Defendant**

Sign \_\_\_\_\_

Print \_\_\_\_\_

**Indemnitor**

Sign \_\_\_\_\_

Print \_\_\_\_\_

**Indemnitor**

Sign \_\_\_\_\_

Print \_\_\_\_\_

**Indemnitor**

Sign \_\_\_\_\_

Print \_\_\_\_\_

**Witness**

Sign \_\_\_\_\_

Print \_\_\_\_\_

**Witness**

Sign \_\_\_\_\_

Print \_\_\_\_\_

**TERMS AND CONDITIONS**

You, the above signed (referred to as "Defendant," "Indemnitor," or together as "you," as applicable), agree to the following terms and conditions:

1. The premium for the Bond is fully earned upon the Defendant's release from custody. Premiums are not refundable except as stated herein.
2. Defendant agrees to appear in any court required in connection with the Bond at the times stated in the Bond and all other times as may be ordered by the court.
3. Surety, as bail, shall have control and jurisdiction over Defendant during the term for which the Bond is in effect and shall have the right to apprehend, arrest and surrender Defendant to the proper officials at any time as provided by law. In the event Defendant's surrender is made prior to the Defendant's failure to appear in court, and for reason other than as stated in paragraph 4, then you may be entitled to a refund of the bond premium if required by applicable law (if any).
4. Unless otherwise provided by applicable law (if any), the following events shall constitute a breach of your obligations to the Surety, and the Surety shall have the right to immediately apprehend, arrest and surrender Defendant, and you shall have no right to any refund of premium whatsoever: (a) Defendant departs the

**(Continued on page 2)**

## **TERMS AND CONDITIONS (Continued from page 1)**

jurisdiction of the court without the prior written consent of the court and the Surety; (b) Defendant moves from his/her current address without prior written consent of the Surety or you fail to notify Surety of any material information; (c) Defendant commits any act that constitutes reasonable evidence of Defendant's intention to cause a forfeiture of the Bond; (d) Defendant is arrested and incarcerated for any other offense (other than a minor traffic violation); (e) Defendant or Indemnitor makes any materially false statement in any application submitted to Surety for the Bond, including the Defendant Bail Bond Application and the Indemnitor Bail Bond Application; (f) Defendant's bail is increased; (g) any Indemnitor requests that Defendant be surrendered; or (h) there is a material increase in the risk assumed by the Surety (as determined by the Surety in its sole and absolute discretion) including, by way of example but not limitation, any collateral or security given for the Bond depreciates in value or becomes impaired.

5. In the event Defendant's apprehension and surrender is required for any reason, including Defendant's failure to appear at any of Defendant's required court proceedings or hearings, Defendant understands, acknowledges, assumes and accepts that Defendant's failure to appear and resulting apprehension to custody is an activity that poses a peculiar risk of harm both to the Defendant and to others, including any recovery agent(s), which is beyond and differs from the risks to which members of the public are commonly and generally subjected. Defendant acknowledges and agrees that if Defendant becomes subject to such apprehension and surrender, Defendant is voluntarily participating in the activity of apprehension and recovery such that the risk of harm of such activity is not peculiar to Defendant. Defendant acknowledges and understands the peculiar risk of such activity and Defendant is no longer a member of the general public who cannot anticipate such risk. Defendant knowingly accepts and assumes the subsequent risk of harm to Defendant and others arising out of such apprehension and surrender activities. Defendant agrees to defend, indemnify, and hold harmless the Surety and/or Bail Producer (including all agents and representatives thereof) for any injuries, harm, losses, claims, lawsuits, damages, liability, demands, actions, fees and expenses (including attorneys fees and costs) arising out of such activities.

6. You shall indemnify the Surety and keep the Surety indemnified and hold it harmless from and against any and all losses, demands, liabilities, fees and expenses (including attorneys fees and costs) (together, "Liabilities"), relating to, or arising out of, Surety's issuance or procurement of the Bond including, but not limited to, the following: (a) the principal amount of any forfeiture of or judgment on the Bond, plus any related court costs, interest and legal fees incurred, (b) a fugitive recovery fee if there is a forfeiture of the Bond (which fee is typically ten percent of the amount of the Bond for an in-state recovery), plus any out of pocket expenses, (c) any and all extradition costs that may be incurred to apprehend and return Defendant to custody, and (d) if a collection action is required, reasonable and actual attorneys' fees plus any other costs, expenses and/or assessments that may be incurred as a result of any forfeiture of the Bond subject to applicable law (if any). The voucher, check or other evidence of any payment made by Surety or its producer, by reason of such suretyship, shall be conclusive evidence of such payment in any lawsuit against you both as to the propriety of such payment and as to the extent of your liability to Surety for such payment. Further, you will, upon demand, place with Surety the requisite funds to meet any such claim, demand, liability, attorneys' fees, expense or judgment, whether that demand is made before or after Surety has paid or advanced such funds.

7. Subject to applicable law (if any), any real or personal property deposited as security, including cash, for the Bond and this Agreement ("Collateral") is held for the payment of any and all monies and sums due to Surety, including all liabilities sustained, made or incurred by Surety on account of, arising out of or relating to the Bond, this Agreement, and the transactions contemplated thereby (including, without limitation, the items referenced in paragraph 6, above). Your failure to comply with the terms and conditions of this Agreement, and any and all debt or other obligations arising out of or evidenced by any agreement executed by Defendant, you or any other indemnitor for the benefit of Surety, may result in the following: If you grant the Surety a lien or security interest in any Collateral to secure the obligations contained in this Agreement, and if you do not perform such obligations, you authorize the Surety to (a) hold, apply or sell any Collateral, or any part thereof, to protect or reimburse the Surety for any and all Liabilities of any kind or nature and to protect or reimburse the Surety by reason of the execution at any time of the Bond or any other bond for or on behalf of Defendant, and (b) hold, apply or sell the Collateral for the purpose of placing the Surety in cash funds to protect the Surety against Liabilities, including any claim, demand, loss or liability under the Bond or any other bond executed on Defendant's behalf. Subject to applicable law (if any), the Surety may make any such sale, at its discretion, at public or private sales, and without demand, notice or advertisement of the time and place of said sale, and also with the right to purchase said Collateral at such sale or sales, freed and discharged from any equity or redemption, except as otherwise provided by applicable law.

**(Continued on page 3)**



## **TERMS AND CONDITIONS (Continued from page 2)**

8. The Surety shall not be liable for the depreciation of any Collateral or for any interest thereon. In the event of depreciation of the Collateral, or any part thereof, or of any Collateral which may be hereafter deposited with the Surety for its protection, upon request of the Surety, you shall provide the Surety with additional and satisfactory Collateral so that the total market value of the collateral shall, at all times, be equal to the market value of the Collateral at the time of its initial deposit. Subject to applicable law (if any), if you fail to deposit such additional collateral, the Surety shall have the full right, power and authority, without further demand or notice, to sell, assign and deliver the whole or any part of such Collateral, substituted Collateral, or additional Collateral, at public or private sale, at its option, and without demand, notice or advertisement, and also with the right to purchase said Collateral at any such sale, freed and discharged from any equity or redemption as provided by applicable law.

9. If a confession of judgment is taken in connection with the Bond, the Surety shall have the right to enter and file the same at any time, and such judgment shall be a lien and entitled to a preference against any of your property, whether or not the Surety is entitled to be indemnified at the time of the filing or entry of such judgment. In case a confession of judgment is filed by the Surety against you, the judgment entered shall be effective and available to the Surety against you not only in connection with the Bond and this Agreement but also in connection with any other bond that may have been written by the Surety in which you are either the indemnitor or defendant.

10. You acknowledge and agree that the Surety may foreclose any or all of the liens and security interests arising out of the transactions relating to the Bond or this Agreement, or exercise any of its rights or remedies under this Agreement, or take any combination of such actions, without waiving any other right or remedy. Failure to exercise any rights or remedies of the Surety at any one time shall not constitute a waiver of the right to exercise them at any other time. Any security or Collateral you give may be substituted, subordinated, or released by the Surety without affecting any other rights. The Surety shall not be obligated to enforce its rights against any security, Collateral or indemnitor prior to enforcing its rights against you or any other indemnitor.

11. Subject to applicable law (if any), the Surety will return the collateral to you when all of the following are satisfied: (a) the Surety receives competent written legal evidence satisfactory to the Surety (for example, written notice from the court) of the Surety's discharge or release from all liability under the Bond; (b) there are no outstanding Liabilities of any kind including, without limitation, premium arising out of or relating to the Bond or this Agreement; (c) there are no other outstanding bonds or obligations executed by, for or on behalf of you or Defendant in connection with which the Surety may deem it advisable to retain such Collateral for its protection; and (d) upon the Surety's request, you shall have executed and delivered to the Surety a general release upon the Surety's return of the Collateral to you. If the Surety deems it necessary to make any outlay to protect any Collateral or security in its possession, whether the same be real or personal property, you authorize the Surety to do so, and you agree to indemnify and reimburse the Surety for any such outlay as in the judgment of the Surety may be necessary to protect its Collateral or security, including payment of taxes or liens or mortgages and any attorneys' fees or service fees for time spent and/or special services rendered.

12. The Surety shall have the right to transfer and/or assign, in whole or in part, its rights and obligations in this Agreement, and/or in the Bond to the Bail Producer or any other person or entity ("Assignee") without notice to or consent from you. Subject to any limitations imposed upon Assignee by the Surety, Assignee shall have the right to enforce in any action, proceeding or otherwise any of the Surety's rights herein or arising out of any of the transactions contemplated hereby, and you shall not, and expressly waive any right to, assert the claim or defense that Assignee does not have the right to enforce such rights in any such action, proceeding or otherwise. If more than one bond is made or has been made for the Defendant, then this Agreement shall extend to and cover all those bonds and the terms of this Agreement shall apply to each bond individually or as a group.

13. To the maximum extent permitted by applicable law, you hereby waive any and all rights you may have under federal law (including, but not limited to, Title 28 Privacy Act-Freedom of Information Act, Title 6, Fair Credit Reporting Act) and any local or state law relating to Surety's obtaining, and you consent to and authorize Surety to obtain, any and all private or public information and/or records concerning you from any party or agency, private or governmental (local, state, federal), including, but not limited to, credit reports, Social Security Records, criminal records, civil records, driving records, tax records, telephone records, medical records, school records, worker compensation records, and employment records. You further authorize, without reservation, any party or agency, private or governmental (local, state, federal), contacted by Surety to furnish in accordance with applicable law any and all private and public information and records in their possession concerning you to the Surety and direct that a copy of this document shall serve as evidence

*(Continued on page 4)*

## **TERMS AND CONDITIONS** *(Continued from page 3)*

of said authorization. You irrevocably grant to Surety and its designees the right to enter your residence, or any other property that you own or occupy, without notice, at any time, for the purpose of locating, arresting, and returning the Defendant to custody, and subject to applicable law, you waive any and all causes of action in connection therewith including, without limitation, torts of trespass and false imprisonment.

14. You agree that Surety may attach a location tracking device on any vehicle owned or driven by you, at any time, without notice, and monitor the location of the vehicle through any available technology. You further agree that Surety may use location technologies to locate your wireless device at any time during the period of Defendant's bail and any applicable remission period, and the Bond is conditioned upon your full compliance with the following terms and conditions: (a) Surety, at its discretion, will use network-based location technologies to find you; (b) this is the only notice you will receive for the collection of your location information; (c) Surety will retain location data only while the Bond is in force and during any applicable remission period; (d) Surety will disclose location information only to the courts as required by court order; (e) Surety and Bail Producer, including their designees and representatives will be the only persons with access to your location information; (f) YOU WILL NOT HAVE THE OPTION TO OPT-OUT OF LOCATION USE DURING THE BAIL PERIOD; and (g) all questions relating to location capability should be directed to Surety.

15. If Defendant leaves the State in which the Bond was issued, subject to applicable law, Defendant waives any right to oppose extradition proceedings and consents to the application of such force as may be necessary to return Defendant to Surety and the court where the Bond was posted.

16. You hereby acknowledge and agree that neither the Surety nor any of its agents, producers, designees or representatives has recommended or suggested any specific attorney or firm of attorneys to represent Defendant in any capacity.

17. This Agreement may not be terminated or modified orally. All modifications and terminations of this Agreement, including any release of your liability hereunder, must be in writing and signed by the Surety and you.

18. In the event any provision herein shall be deemed to exceed any applicable state or federal law, then such provision shall automatically be deemed to have been revised to comply with such law so as to provide Surety with the maximum protection from any loss or liability. The invalidity or unenforceability of any provision herein (or portion thereof) shall in no way effect the validity or enforceability of any other provision (or portion thereof). Surety may assign any of its rights herein or arising out of any of the transactions contemplated hereby to any party including, without limitation, any Assignee without notice or consent from you. Subject to any limitations imposed upon Assignee by Surety, Assignee shall have the right to enforce in any action or proceeding any of Surety's rights herein or arising out of any of the transactions contemplated hereby, and you shall not, and expressly waives any right to, assert the claim or defense that Assignee does not have the right to enforce such rights in any such action or proceeding.

19. This Agreement and all documents that are executed in connection with this Agreement set forth all the terms of the agreement between the Surety and you. All statements, representations, promises, agreements, and affirmations made by the Surety and its producers and representatives prior to or contemporaneously with the execution of this Agreement are contained within this document, and unless they are specifically set forth in this Agreement are of no force or effect whatsoever in determining the rights and liabilities of the Surety and you. You further agree to execute and be bound by any other future documents necessary to carry out and effectuate this Agreement.

20. You have not been paid to sign this Agreement. You have read the above contract, understand it and agree to fulfill ALL of the provisions therein.

SURETY:

**Sun Surety**

**Insurance Company**

P.O. Box 2373

Rapid City, SD 57709

(605) 348-1000 / SSIC@sunsuretybail.com

BAIL PRODUCER: [stamp must include name, address, phone no., e-mail and license no.]

**BAIL BOND RELEASE CENTER**

800 S. Congress Ave, West Palm Beach, FL 33406

Tel: (561) 833-4388

bailbondreleasecenter@gmail.com

Carlos Sevilla · FL Bail Agent Lic. #P204302

**PROMISSORY NOTE & INSTALLMENT PAYMENT PLAN FOR UNPAID PREMIUM**

\$ \_\_\_\_\_

Date: \_\_\_\_\_

Power No. \_\_\_\_\_

City: \_\_\_\_\_ State: \_\_\_\_\_

1. FOR VALUE RECEIVED, I (we), the undersigned Debtor(s), jointly and severally (together and separately), promise to pay to the order of \_\_\_\_\_ ("Bail Producer") the principal sum of \_\_\_\_\_ (\$ \_\_\_\_\_) owed for the bail bond ("Bond") of \_\_\_\_\_ ("Defendant") at the address shown above in the Bail Producer Stamp box or at such other place as Bail Producer may from time to time designate in writing according to the following payment plan:

|                                        |                         |
|----------------------------------------|-------------------------|
| Payment #1: Amount of payment \$ _____ | Date payment due: _____ |
| Payment #2: Amount of payment \$ _____ | Date payment due: _____ |
| Payment #3: Amount of payment \$ _____ | Date payment due: _____ |
| Payment #4: Amount of payment \$ _____ | Date payment due: _____ |

2. The entire amount of the then outstanding balance under this note shall become due and payable immediately under any one or more of the following events: (i) upon Defendant's failure to appear in the court for which the Bond was posted at any time required by such court; (ii) upon forfeiture of the Bond; or (iii) if any payment is not received by Bail Producer within ten days following its due date or is returned for insufficient funds, stopped or refused for any reason upon presentment to a financial institution.
3. I (we), jointly and severally (together and separately), hereby waive presentment, protest and demand, notice of protest, dishonor and nonpayment of this note, and expressly agree that, without in any way affecting my (our) liability under this note, Bail Producer may (i) extend the due date or the time of payment of any payment due under this note, (ii) accept security or partial payments, (iii) release any party liable under this note or any guarantee of this note and (iv) release any security now or later securing this note. The failure of the Bail Producer to enforce any provision of this note, or to declare a default under this note, shall not be construed as a waiver of the Bail Producer's entitlement to payment, shall not be construed as a waiver or modification of the terms of this note, and shall not impair the right of the Bail Producer to declare a default or to strictly enforce the terms of this note.
4. All obligations under this note remain in full force and are not terminated, modified or otherwise affected: (i) by revocation of the Bond; (ii) by any change in the status of the Bond or the surety's liability under the Bond; (iii) by any change in the status of court proceedings for which the Bond was posted; or (iv) by any change in whereabouts or status of the Defendant. This note shall become null and void only if all premium amounts and obligations under the Bond have been paid or satisfied, and otherwise, this note shall remain in full force and effect.
5. If any portion of this note or any application of such provision shall be declared by a court of competent jurisdiction to be invalid or unenforceable, such invalidity or unenforceability shall not affect any other applications of such provision or the remaining provisions which shall, to the fullest extent, remain in full force and effect. Any amendment or modification of this note must be in writing and signed by both Bail Producer and me (us).
6. I (we) agree to all terms and conditions of this note and acknowledge receipt of a copy of this note. I (we) also agree to pay all collection costs including, without limitation, court costs, reasonable and actual attorneys' fees and expenses, and any other fees permitted by applicable law.

**Witness(es):**

**Debtor(s):**

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

## BAIL BOND RELEASE CENTER OF THE PALM BEACHES, INC.

800 S. Congress Ave, West Palm Beach, FL 33406 · Tel (561) 833-4388 · bailbondreleasecenter@gmail.com  
Carlos Sevilla · Florida Bail Agent License #P204302

### PAYMENT PLAN AND INTEREST DISCLOSURE

Attached to and made part of the Sun Surety Promissory Note & Installment Payment Plan for Unpaid Premium

Defendant: \_\_\_\_\_ Power No.: \_\_\_\_\_ Receipt No.: PR- \_\_\_\_\_  
Indemnitor / Debtor: \_\_\_\_\_ Date: \_\_\_\_\_

#### AMOUNT FINANCED

1. Total premium and charges \$ \_\_\_\_\_
2. Amount paid today \$ \_\_\_\_\_
3. UNPAID PREMIUM BALANCE FINANCED \$ \_\_\_\_\_
4. Payment plan code (PPX4W / PPX8B / PPFULLW) \_\_\_\_\_
5. Number of payments \_\_\_\_\_ of \$ \_\_\_\_\_ each \_\_\_\_\_
6. Frequency \_\_\_\_\_ First payment due \_\_\_\_\_

#### INTEREST RATE

**ANNUAL INTEREST RATE WHILE THE BOND REMAINS IN FORCE**

**0.00 %**

**ANNUAL INTEREST RATE ON ANY BALANCE STILL UNPAID WHEN THE COURT DISCHARGES THE SURETY'S LIABILITY ON THE BOND**

**18.00 %**

simple per annum

No interest accrues while the bond is in force. If any part of the unpaid premium is still owing on the date the court discharges, exonerates or otherwise terminates the Surety's liability on the bond, the entire remaining balance bears interest at 18.00% simple per annum from that date until paid in full.

18.00% is the maximum rate of interest permitted by section 687.02, Florida Statutes, for a loan, advance of money, line of credit, forbearance or other obligation of \$500,000 or less. In no event will the interest reserved, charged, taken or received exceed that maximum. Any amount received in excess of the maximum will be applied to reduce the principal balance or, if the principal has been paid in full, refunded.

#### OTHER AMOUNTS THAT MAY BE ADDED TO THE BALANCE

Actual costs of collection, reasonable attorney's fees, appellate attorney's fees and court costs. If real property secures this debt, also every sum advanced to protect the property or the priority of the lien - ad valorem taxes, assessments, hazard and flood insurance premiums, homeowner or condominium association dues and assessments, code enforcement liens, payments on any superior mortgage, and reasonable costs of preservation, maintenance and repair - together with recording, satisfaction and release fees. These are advances and costs, not interest.

**NO PERIODIC, MONTHLY OR ANNUAL SERVICE FEE IS CHARGED ON THIS BALANCE.**

#### SECURITY FOR THIS BALANCE

- ☐ None ☐ Vehicle title ☐ Credit card on file ☐ Real property mortgage (recorded)

Any collateral taken as security for the BOND is receipted separately on a numbered Bail Bond Collateral Receipt and is returned upon final termination of liability on the bond, as section 648.442, Florida Statutes, requires. This disclosure concerns the unpaid premium debt only.

I have read this disclosure, I understand the interest rate stated above, and I have received a copy.

Indemnitor / Debtor Sign: \_\_\_\_\_ Print: \_\_\_\_\_

Bail Bond Agent Sign: \_\_\_\_\_ Date: \_\_\_\_\_